

26CV00309 William C Turner, III vs Svetlana Leonidovna Dayal et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-27

Motion: Motion: Disqualify Counsel

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Tentative Ruling: William C Turner, III vs Svetlana Leonidovna Dayal et al

Case Number

26CV00309

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/27/2026 - 10:00

Nature of Proceedings

Motion: Disqualify Counsel

Tentative Ruling

William Turner III v. Svetlana Leonidovna Dayal, et al.

Case No. 26CV00309

Hearing Date: July 27, 2026

HEARING: Motion of Svetlana Leonidovna Dayal to Disqualify Attorney Geoff Conner Newlan as Counsel for Plaintiff William C. Turner III

ATTORNEYS: For Plaintiff William Turner III: Geoff Conner Newlan

For Defendant Svetlana Leonidovna Dayal: Self-Represented

For Defendant Voigt Inc., dba Smitty's Towing West & Storage: Cristi Michelson Vasquez

TENTATIVE RULING:

The motion of Svetlana Leonidovna Dayal (Dayal) to disqualify attorney Geoff Conner Newlan (Newlan) as counsel for plaintiff William C. Turner III (Turner) is continued to August 17, 2026, at 10:00 a.m. in this department. On or before July 28, 2026, Dayal shall file a proof of service of her motion on defendant Voigt Inc., dba Smitty's Towing West & Storage (Smitty's), and a proof of service of this order on all parties, or this motion will be ordered off calendar. Smitty's may file and serve a response to this motion on or before August 7, 2026, and any reply may be filed and served on or before August 10.

As to the other nine motions on calendar for August 17, 2026, if it has not already done so, the moving party for each of these motions must file a proof of service of these motions on or before July 28, 2026, as to all parties including Smitty's, or the court will order off calendar any motions that are not supported by a code-compliant proof of service. Smitty's may file and serve a response to these motions on or before August 7, 2026, and any reply may be filed and served on or before August 10.

Background/Analysis:

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).) "Unless otherwise ordered or specifically provided by law, all moving and supporting papers must be served and filed in accordance with Code of Civil Procedure section 1005 and, when applicable, the statutes and rules providing for electronic filing and service." (Cal. Rule of Court, rule 3.1300(a).) "[U]nless a statute or rule provides for a different method for filing or service, a requirement to 'serve and file' a document means that a copy of the document must be served on the attorney for each party separately represented, on each self-represented party, and on any other person or entity when required by statute, rule, or court order, and that the document and a proof of service of the document must be filed with the court." (Cal. Rules of Court, rule 1.21(b).) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (Id., rule 3.1300(c).) The moving party has the burden of proof on service of the initial motion. (See Evid. Code, § 500.)

On June 12, 2026, defendant Dayal filed this motion (Disqualification Motion) to disqualify Turner's counsel of record, attorney Newlan. The motion argues that attorney Newlan has a conflict of interest, is a material witness in this action, and should not under these circumstances be permitted to act as an advocate and a witness. Turner opposes Dayal's motion, arguing that attorney Newlan never acted as an attorney for Dayal and therefore does not have any conflict of interest. Moreover, as argued by Turner, attorney Newlan is not a necessary witness and Dayal has implicitly waived these issues by way of her litigation conduct.

Dayal's Disqualification Motion is not supported by a proof of service on defendant Smitty's. There has been no response to this motion by Smitty's. The court will continue this motion to August 17, 2026, so that service on Smitty's may be effectuated by moving party Dayal.

The court notes that there are nine additional motions set for hearing on August 17, 2026 (August 17 Motions). The August 17 Motions filed by Dayal and by Turner do not appear to be supported by a proof of service on Smitty's. The court will order that the moving parties file a proof of service on or before July 28, 2026, as to Smitty's and any other party not previously served. If an appropriate proof of service is not filed by this time, the court will order off calendar any August 17 Motion not supported by a code-compliant proof of service.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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